

At bar, the petition does not fully comply with the statutory requirements. The Petition is verified, alleges the date of recordation of the Claim of Mechanic's Lien, the county in which it was recorded (Nevada County), and attaches and incorporates by reference a certified copy of the Claim of Mechanic's Lien. Pet., ¶ 3; Pet. p. 4 (verification); Exh. A. The Petition states the lien was recorded in the official records of the County Recorder as Document No. 20250017281. Pet., ¶ 3. The Petition alleges the legal description of the Subject Property. Pet., ¶ 1.

The Petition alleges that no extension of credit has been granted, that no action to foreclose the Claim of Mechanic's Lien was filed, that the 90-day time period to enforce the Claim of Mechanic's Lien has expired. Pet., ¶ 4. The Petition also alleges Petitioner has not filed for bankruptcy and that no other restraint exists preventing Respondent from filing an action to enforce the lien. Pet., ¶ 8. The Petition alleges that on February 12, 2026, which is at least ten days prior to the filing of the Petition, Petitioner sent Respondent, by certified mail a written demand to remove the Claim of Mechanic's Lien. Pet., ¶ 6, Exh. B; POS on Petitioner's Demand for Release, p. 11. Service of the written demand by "registered or certified mail, express mail, or overnight delivery by an express service carrier" is proper. Civ. Code §§ 8100, 8106(b), 8110.

In sum, Petitioner has met the substantive requirements for relief.

Service Requirements

"The petitioner shall serve a copy of the petition and a notice of hearing on the claimant at least 15 days before the hearing." Civ. Code, § 8486(b). "Service shall be made in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested, addressed to the claimant as provided in Section 8108." *Id.* If service is made by mail, notice of hearing must be given at least 15 days before the hearing, plus 5 calendar days for service by mail. Code of Civ. Proc. § 1013(a). The petitioner bears the burden of proving compliance with the service and notice requirements. Civ. Code § 8488(a).

At bar, Petitioner's proof of service filed February 25, 2026 indicates service was made by electronic service on February 23, 2026. There is no indication service was made "in the same manner as service of summons, or by certified or registered mail, postage prepaid, return receipt requested." Civ. Code § 8486(b); Code Civ. Proc. §§ 415.10, 1010.6(a)(2). Thus, the Court finds Petitioner fails to sustain his burden of proof with respect to service and notice of hearing.

As such, the Court denies the petition without prejudice to renewal given the defects discussed.

3. CU0001540 Bradley Dorigo, et al v. County of Nevada

Defendants' California Department of Transportation ("CalTrans") and California Transportation Agency ("CalSTA") unopposed demurrer to plaintiff's second amended complaint is sustained without leave to amend.

Legal Standard

A demurrer challenges defects appearing on the face of the pleading or from matters

appearing through judicial notice. See Code Civ. Proc. §§ 430.30, 430.70. On demurrer, the court reasonably interprets the challenged pleading, reading it as a whole and its parts in context; the court determines whether the complaint states facts sufficient to constitute a cause of action under the pertinent substantive law, and assumes the truth of all material facts properly pleaded, but not contentions, deductions or conclusions of fact or law; in deciding whether to sustain a demurrer without leave to amend, the Court must consider whether a reasonable possibility exists that the defect can be cured by amendment. *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.

First Cause of Action: Dangerous Condition of Public Property

Defendant argues the first cause of action for dangerous condition of public property under Government Code § 835 fails to allege facts sufficient to support the cause of action. The court agrees.

“Under the Government Claims Act (Gov. Code1, § 810 et seq.), a public entity can be held liable for either creating a dangerous condition on its property (§ 835(a)) or failing to protect against such a condition when the entity had notice of the danger and sufficient time to remedy the situation (§ 835(b).)” *Tansavatdi v. City of Rancho Palos Verdes* (2023) 14 Cal.5th 639, 648. Section 835(a) and (b) establish that:

Except as provided by statute, a public entity is liable for injury caused by a dangerous condition of its property if the plaintiff establishes that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury incurred, and that either (a) a negligent or wrongful act or omission of an employee of the public employee within the scope of his employer created the dangerous condition; or (b) The public entity had actual or constructive notice of the dangerous condition under Section 835.2 a sufficient time prior to the injury to have taken measures to protect against the dangerous condition.”

To establish liability under section 835, a plaintiff must show that the property was in a dangerous condition at the time of the injury, that the injury was proximately caused by the dangerous condition, that the dangerous condition created a reasonably foreseeable risk of the kind of injury which was incurred and either, pursuant to 835(a), a public employee negligently or wrongfully created the dangerous condition or, per section 835(b), the public entity had actual or constructive notice of the dangerous condition a sufficient time prior to the injury to have taken measures to protect against it. *Transvatdi, supra*, at 653. Therefore, section 835 authorizes two different forms of dangerous conditions liability based on negligence: an act or omission by a government actor that created the dangerous condition based on control (§ 835(a)); or alternatively, failure “to protect against” dangerous conditions of which the entity did not create but of which it had notice.

What distinguishes the two types of cases is not simply whether the public entity has notice of the dangerous condition. Instead, what distinguishes the two cases in practice is who created the dangerous condition. Because an entity must act through its employees, virtually all suits brought on account of dangerous

conditions created by the entity will be brought under subdivision (a). In contrast, subdivision (b) can also support suits based on dangerous conditions not created by the entity or its employees.

Brown v. Poway Unified School Dist. (1993) 4 Cal.4th 820, 836.

Plaintiff, as part of its pleading burden, must allege with specific facts the following to establish a dangerous condition of public property cause of action: 1) a dangerous condition of public property; 2) a proximate causal connection between the condition and the injury sustained; 3) a reasonably foreseeable risk that the kind of injury that occurred would result from the dangerous condition; and 4) the entity either created the condition or had actual notice or constructive notice of its existence, and there was sufficient time before the injury for it to have taken remedial action. *Mittenhuber v. City of Redondo Beach* (1983) 142 Cal.App.3d 1, 5; see *People ex rel. Dept. of Transportation v. Superior Court* (1992) 5 Cal.App.4th 1480, 1485-1486.

The fourth element requires plaintiff to demonstrate defendant was negligent either under section 835(a) where the entity created the condition, or section 835(b) where the danger was created by a third party, and the entity had actual or constructive notice of the dangerous condition with a reasonable time to correct. As explained above, there is a difference. Under section 835(a), plaintiff must show the public entity created the danger itself through an employee's affirmative act or omission to act; if so, the law assumes a public entity necessarily had notice of the dangerous condition it itself created. *Wise v. Los Angeles* (1935) 9 Cal.App.2d 364, 367. Thus, actual or constructive notice is not at issue. *Martinez v. City of Beverly Hills* (2021) 71 Cal.App.5th 508, 518-519. Actual or constructive notice is relevant only if a third party creates the danger on public property, per section 835(b). The complaint is silent about the basis of Defendants' negligence, meaning defendants cannot reasonably respond. The inadequate pleading prevents defendants from advancing certain defenses it would be able to raise depending on the theory of negligence advanced. *People Ex Rel Dept. of Transportation, supra*, 5 Cal.App.4th at p. 1486.

Additionally, plaintiff cannot rely on generalized allegations; rather, he must allege detailed facts to support each element of the dangerous condition on public property cause of action. For example, a dangerous condition is defined as a "condition of property that creates a substantial danger (as distinguished from a minor, trivial, or insignificant) of risk of injury when such property . . . is used with due care in manner in which it is reasonably foreseeable that it will be used." Gov. Code § 830 (a). While Plaintiff alleges the roadway where plaintiff fell off his motorcycle was in a dangerous condition at the time of the incident and there was a lack of safety measures and/or warnings of the dangerous condition, he fails to plead facts sufficient to inform defendant about the nature of the relationship between the condition of the road and the injuries suffered by plaintiff. See *Ex Rel Dept. of Transportation, supra*, 5 Cal.App.4th at 1486. Plaintiffs "have an obligation to give [the public entity] more information." *Ibid*.

At bar, Plaintiff merely alleges Mr. Dorigo was lawfully on the subject roadway and unable to foresee or prevent the impending injury; and that a dangerous condition existed at the roadway at the time Mr. Dorigo fell off his motorcycle including tight curves, zero shoulders, and no clear recovery. FAC, ¶¶ 8, 14, 19. However, plaintiff's perfunctory allegations fail to inform defendants what other factors, such as weather or time of day, were responsible for his fall.

Therefore, plaintiff fails to plead with specific facts the nature of the relationship between the condition of the roadway and the injuries suffered by plaintiff sufficient to show why the condition at issue is dangerous, why a proximate causal connection between the condition of the roadway and the injury sustained; and whether there was a reasonably foreseeable risk the kind of injury which occurred would result from the alleged dangerous condition.

Second Cause of Action: Negligence

Defendants argue the second cause of action for negligence fails because public entities and their employees cannot be held vicariously liable for a dangerous property condition. The court again agrees.

“Public entity liability for property defects is not governed by the general rule of vicarious liability provided in section 815.2.” *Van Kempen v. Hayward Area Park etc. Dist.* (1972) 23 Cal.App.3d 822, 825. “[P]ublic entity liability for property defects is not governed by the general rule of vicarious liability provided in section 815.2, but rather by the provisions in sections 830 to 835.4 of the Government Code. A public employee is not liable for injuries caused by a condition of public property where such condition exists because of any act or omission of such employee within the scope of his employee.” *Longfellow v. County of San Luis Obispo* (1983) 144 Cal.App.3d 379, 383. Because this is what plaintiffs allege in the cause of action at bar, “since the employee is immune, the public entity cannot be held liable for the acts of the employee and plaintiffs have no cause of action.” *Ibid.*

Leave to Amend

The burden is on the plaintiff “to articulate how it could amend its pleading to render it sufficient.” *Palm Springs Villas II Homeowners Assn., Inc. v. Parth* (2016) 248 Cal.App.4th 268, 290. To satisfy that burden, a plaintiff “must show in what manner he can amend his complaint and how that amendment will change the legal effect of his pleading.” *Goodman v. Kennedy* (1976) 18 Cal.3d 335, 349. Plaintiff did not file an opposition to Defendants’ demurrer or other papers with the court to identify the facts that he could allege to cure the defects with his first and second causes of action. Thus, the court finds that Plaintiff has not met his burden to articulate how he could amend the FAC to render it sufficient against Defendants and therefore sustains the demurrer without leave to amend.

4. CU0001750 McKellar Tree Service & Logging, Inc. v. Blue Lead Gold Mining, LLC, et al.

Intervenor Red Dog Mining and Reclamation, LLC’s (“Red Dog”) motion to release property from Mechanic’s Lien is granted.

Request for Judicial Notice

Red Dog’s unopposed requests for judicial notice filed on January 16, 2026 are granted. Evid. Code § 452(d). McKellar Tree Service & Logging, Inc.’s (“McKellar”) requests for judicial notice are granted. Evid. Code § 452(d). Judicial notice is limited to the fact that the documents